

1. COURSE NAME AND NUMBER:

ETHICAL LAWYERING IN A GLOBAL COMMUNITY – LW 1200 (Sec. A)

2. COURSE INSTRUCTOR

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3. COURSE INFORMATION

a. Class Times: Fall 2026 – Mondays 2:30-4:30pm;
Winter 2026 – Mondays 10:30am-12:30pm.

b. Course Description:

Ethics, access to justice and professionalism – locally and globally – have increasingly become foundational topics of attention at all levels of the justice community. This course is designed to look at those issues, both from the collective view of the profession as well as from the individual view of the student/lawyer.

This course provides an introduction to the legal profession, professional norms and values, and the ethical issues that lawyers grapple with not only in the context of their many and varied roles, but also as members of a profession with collective responsibilities in relation to access to justice and the public interest. The course situates these issues within their modern day social and political contexts, characterized by truth and reconciliation calls to action, local and global discontent about racism, marginalization and victimization, growing wealth and power disparities, legal pluralism and diversity, globalism, transnationalism and internationalization.

The changing nature of legal practice has resulted in the proliferation of practice contexts and roles for lawyers. This course introduces students to multiple visions of lawyering and professional roles and the many contexts in which those roles are performed. It asks

whether and how context should matter as lawyers conceptualize their roles and their individual and collective professional and ethical obligations. It explores questions of how legal professionals working in different settings, such as private practice, government, legal aid clinics, the legal academy, or beyond the formal practice of law, should conceptualize their roles, obligation and opportunities. It explores different lawyering visions of how one undertakes the task of lawyering. This can be lawyer as collaborator, lawyer as deal-maker, lawyer as expert, lawyer as facilitator, lawyer as negotiator, lawyer as translator/storyteller, lawyer as friend and lawyer as hired gun, among others. It asks students to evaluate and question the centrality and ongoing sustainability of adversarialism and neutral partisanship (the “hired gun” vision of a lawyer) in today’s society, and what alternative visions might look like. In doing so, this course emphasizes the importance of a self-conscious selection of lawyering visions. In the process, it draws students’ attention to the power dynamics in lawyer-client relationships, to the scope of conversations lawyers ought to have with clients, and to possible individual and collective duties beyond those owed to clients. The course will put the concept of the public interest front and centre and ask students to engage in a critical and self-reflective conversation about what the public interest is and what it means in terms of lawyering, the profession and professionalism – individually and collectively. Central to all of these discussions will be the underlying themes of access to justice and, as detailed below, the growing trend of trans-nationalization of what was once local legal contexts.

The communities served by lawyers, the practice contexts in which they work and the problems they encounter are increasingly diverse, complex, transnational and global in character, demanding new competencies and raising a host of new issues about ethics and professionalism. More and more lawyers engage in transnational practices, including, for example, corporate, family, labour and human rights practices. Knowledge of other legal systems and the norms of professional conduct in other jurisdictions are increasingly essential in such settings. Even beyond these transnational contexts, few if any fields remain in which legal professionals can rely solely on knowledge of a single, domestic legal system. Local communities are microcosms of global diversity in which a multiplicity of official and unofficial legal orders and ethical systems overlap. The increasingly pluralistic nature of modern local communities demands that the vast majority of lawyers will be required to work in contexts that require cross-cultural competencies and sensitivities to diverse moral perspectives. Indeed, competent legal representation necessitates attention to the cross-cultural and international, comparative and transnational (ICT) dimensions of much legal work.

b. Course Structure:

Ethical Lawyering in a Global Community will be primarily taught in two main Parts: Part I in the fall term and Part II in the winter term.

Part I of this course introduces students to some key concepts relevant to an appreciation

of the ethical dimensions of lawyering including the profession, professionalism, access to justice, equality and the public interest. Part I also examines lawyering through the lens of role morality, introducing the neutral partisan model and some alternatives.

Part II of this course will build on materials introduced in Part I. It will also build on the experiences and skills that students have developed through other classes over the fall term. In Part II, we will return to the themes introduced in Part I, but with the goal of broadening our sense of the complexity and challenges of ethical lawyering and to deepen our capacity to evaluate and address these challenges. We will develop our discussions on the topics of role morality, the public interest, pluralism, internationalism and transnationalism. Various specific topics will be raised as tools to illuminate some of these broader discussions, including a number of professional obligations (competence, candour, civility, confidentiality and conflicts), institutional lawyering, internationalism/transnationalism and future directions of the legal profession.

The course emphasizes problem-oriented, active learning. During small group sessions, teaching tools such as simulations, problems, case studies, role plays, fictional accounts, biographies, films, and collaborations will often be used to encourage students to immerse themselves actively into complex ethical, professional and ICT contexts.

Further, in Part II of the course, in addition to regular in-class exercises and discussions, we will bring together the various building blocks from Parts I and II in a case study in which students will work in lawyering groups to integrate the themes of the course and apply them to concrete scenarios.

c. Learning Objectives:

The overall objective of this course is to encourage students to engage in an expansive, moral conversation about lawyering that will lead to a reflective and critical approach to ethical lawyering in a global community. As lawyers, who we are, for whom, how and where we act, and on what basis are central questions for this course.

By the end of the course, students should be able to:

- demonstrate a basic understanding of the history, structure and regulatory processes of the Canadian legal profession;
- demonstrate knowledge of the norms traditionally associated with the legal profession as reflected in rules of professional conduct and related enabling legislation;
- appreciate the legal profession as, itself, a normative system, wherein the norms are not given and static but contested and shifting;

- engage in critical reflection over what relationship, if any, legal education, and the legal profession have with the production and reproduction of forms of social hierarchy;
- appreciate the experience as well as diversity of visions or philosophies of lawyering;
- discern some ethical frameworks that are appropriate to various lawyering roles and practice contexts;
- demonstrate the ability to think critically about the legal profession, professionalism and the administration of justice;
- demonstrate an understanding of some of the basic professional obligations and practice issues relating to the lawyering role, including the fiduciary nature of the lawyer-client relationship, communication and civility, competence, confidentiality and disclosure, conflicts of interest, equality and diversity, etc.;
- demonstrate an understanding of multiple conceptions of access to justice and the public interest, two of the central norms claimed by the legal profession;
- demonstrate knowledge of the multiplicity of legal and normative orders in which lawyering occurs and understand how this multiplicity of orders may impact both client representation and the collective responsibilities of the profession;
- engage in ethical deliberations about legal problems in manners that are open to multiple viewpoints, moral perspectives and legal and social orders;
- engage in critical discussions about the role of law and lawyering in perpetuating and combating racial, cultural, gender and other forms of social bias, violence and exclusion;
- appreciate some of the many and varied impacts of globalization on the practice of law and the regulation of the legal profession;
- demonstrate an understanding of some basic ICT (international, comparative and transnational) concepts that relate to the lawyering process;
- identify and apply connections between the knowledge, skills and contextual discussions raised in this course and other law and pre-law school courses and experiences as well as in the Osgoode Public Interest Requirement (OPIR) program; and
- work collaboratively with others to resolve concrete professional problems.

d. Evaluation:

Final course grades will be assigned following Part II of the course and will be released with other first year grades in the spring (typically in May). Evaluation for the course is based on the following components:

Participation (value: 15%)

The 15% participation grade in ELGC Section A is broken down into two components:

- (1) In-class reflections during the Fall and Winter terms
- (2) eClass discussion forums in Fall and Winter

In-Class Reflections = 10%

There will be a reflection question assigned at the end of each class. These reflections will be written in class and submitted through eClass at the end of each class.

eClass Discussion Forums = 5%

There will be discussion forums on eClass during the Fall and Winter terms. Students will have the entire term to post to each forum. Each forum post is worth 2.5% of the final grade. Students are only required to post once each term. Contributions may be either a new post or a reaction to an existing post.

Part I Written Assignment (value: 20%)

The first assignment will be a short essay. Please read the following instructions:

- The assignment should be **limited to 750 words**, double-spaced, using 12-point font.
- The assignment must be submitted through the Osgoode on-line drop box by no later than **Friday October 30, 2026**. The on-line drop box is available through the MyOsgoode website.
- Please make sure to include a **separate cover sheet**, which should provide:
 - the name of the course;
 - your **confidential student assignment number** (and not your name or student number);
 - Instructor's name;
 - your section;
 - the date;
 - the name/title of the assignment; and
 - **the word count**.
- Please also make sure to include a **bibliography** (not included in the 750- word limit).

- **Citations** (not included in the 750-word limit) should be in either footnote or in-text format. For this first assignment, students may choose which citation format to use.
- Assignments should be submitted in PDF format.
- Hard copies will not be accepted.
- It is important to receive and record your **confirmation of submission number**.
- A late submission **penalty** of 1 mark per day or partial day will apply (i.e. the assignment is graded out of a total of 20 marks; the late penalty is 1 mark out of 20 per day or partial day).

Further instructions will be provided during Part I of the course.

Case Study (value: 20%)

Part II of the course will feature a case study exercise. Much of this work will be done in small groups. A case study lawyering group presentation (moot) will take place over three classes in the winter semester. Groups will be assigned. Performances will be evaluated by group. All students must fully participate in their group's preparation but can decide who and how many students will be involved in the oral presentation.

Further instructions will be provided during Part II of the course.

Final Paper (value: 45%)

The final element of the course evaluation will be a written assignment. In this assignment, you will need to use a critical approach and integrate readings and other learning materials from both Parts I and II of the course. The assignment will emphasize course materials, course discussions and your own observations and experiences and therefore should include no outside research. The question(s) for the assignment will be distributed at the end of Part II of the course. Please read the following instructions:

- The assignment, limited to **3,000 words**, should be double-spaced using 12-point font.
- The assignment must be submitted by way of the Osgoode on-line drop box by no later than **Monday April 5, 2027 at 3:30pm**. The on-line drop box is available through the MyOsgoode website.
- Please make sure to include a **separate cover sheet**, which should provide:
 - the name of the course;
 - your **confidential student assignment number** (and not your name or student number);
 - Instructor's name;
 - your section;

- the date;
- the name/title of the assignment; and
- **the word count.**
- Please also make sure to include a **bibliography** (not included in the 3,000 words).
- **Citations** (included in the 3,000 words) should be in footnotes using McGill Guide format.
- Assignments should be submitted in PDF format.
- Hard copies will not be accepted.
- It is important to receive and record your **confirmation of submission number**.
- **Late submission** of assignments: in accordance with Osgoode's policies and rules, any requests for extensions must be made in writing to Mya Rimón, Assistant Dean, Students and must be received in advance of the assignment due date. Assignments submitted after the due date will not be accepted without specific permission from the Assistant Dean, Students, in accordance with Osgoode's policies and rules. Students submitting late assignments who have not been granted an extension will receive a grade of 0 for the assignment.

e. Instructor's policy on AI:

The use of AI is prohibited in this course.

f. Instructor's policy on devices in the classroom:

The classroom for this course is intentionally designed to be a low-technology space. We will use devices deliberately and only briefly for classroom engagement (e.g., polls, exercises).

Sustained attention to a hard problem, and respectful, face-to-face engagement with people who see it differently, are core professional skills and not just classroom virtues. Lawyers listen to clients, witnesses, opposing counsel, and judges without a screen mediating their interaction. The habits of focus and civil discourse you are expected to practise in the classroom are the same ones the profession will expect of you.

Students will only use laptops/phones in class when so directed. Ordinarily, devices (both laptops and phones) are expected to be silenced and stowed.

If you attend class, you will gain no benefit from having a transcript of what was said; you will have access to the recording. You do not need to write down anything from my materials; I will share my slide decks with you every day after class. Everything you are accountable for is provided in writing. Readings are set out in advance with framing questions.

You are encouraged to take notes by hand. Writing down your thoughts and reactions to concepts, as opposed to transcribing the words that deliver the message, is proven to be a better way to synthesize material and engage with it more deeply.

This policy also reflects a simple courtesy to classmates. Research on classroom technology finds that a screen open to email, news, or other online notifications distracts not only its user but everyone sitting nearby.

Please note that some students may be authorized to use a device in class. Please assume that any device you see is authorized and leave enforcement to the instructors. We will know who is authorized to use devices. Unauthorized use of a device may result in the deduction of participation marks.

g. Materials:

The course materials will be provided in two sets, one for each of Part I and Part II of the course.

The materials for Part I and Part II will be primarily available via hyperlink in the Course Syllabus or online on the course eClass site. Part I materials will be available in late August and Part II materials will be posted in early January.

Further materials may be provided from time to time for individual sessions. The e-class course website may also contain further instructions, notices and materials.

4. OSGOODE AND YORK ACADEMIC POLICIES

This section is required by Osgoode Hall Law School to be in every course outline. Students are assumed to have read the whole section.

a. Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the **York Senate Academic Conduct Policy and Procedures** and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external

persons, works, and/or technologies:

1) *Unauthorized use of collaborative study materials*

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode's "[Guidelines on use of Collaborative Study Materials in Examinations](#)", found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permission by the instructor and, then, only to the extent of that authorization.

2) *Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor*

The Academic Conduct Policy and Procedures contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);

...

- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution "third party" in section 5.2.a.x. should be read to include use of tools like Word's spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot "go beyond correction" any more than a human third party's assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

...

c. follow their instructors' expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

b. communicate with and support students in following instructors' expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) Plagiarism, unattributed paraphrasing and connections to improper use of AI

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person's work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another's writing without proper citation;
- iii. Representing another's artistic, technical work or creation as one's own;
- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the

citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance:

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimón know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs:

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York's Student Accessibility Services](#) office or Osgoode's Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the "Accommodation Information for Clinical & Intensive Program" handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimón and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process:

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants is available online via the [University Secretariat](#).

5. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING

a. Remote and Hyflex classes:

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online classes or modules) or by Hyflex (dual-delivery) The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode's definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording:

With respect to lecture classes in "courses" (as opposed to "seminars"), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode's recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor's voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode's recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode's policy but an

instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections:

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex's dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University's Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York's [Policy on Access of Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into computer system which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the

interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties:

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

TOPICS AND MATERIALS

WEEK 1

ETHICS, PROFESSIONALISM AND THE MAKING OF LAWYERS

Readings

Please read the following materials in preparation for Week 1. As you read, please consider the questions outlined for Week 1 set out further below.

- Samuel Moyn, “Law Schools are Bad for Democracy” *The Chronicle of Higher Education* (16 December 2018), online: <<https://www-chronicle-com.ezproxy.library.yorku.ca/article/Law-Schools-Are-Bad-for/245334>>.
- Frederick Schauer, “Do Lawyers Think, and If So, How?”, University of Virginia Law School address, 30 April 2010, online: <https://www.youtube.com/watch?v=_l7FcYzvl7k>.

Questions

- Why did you come to law school?
- What relationship, if any, might legal education, and the legal profession have with the production and reproduction of forms of social hierarchy?
- What does it mean to be a lawyer?
- What is ethical conduct? Is it different than conduct that is lawful?
- What justifications might we offer for our choice(s) of conduct?
- Does one’s role matter in our assessment of ethical conduct?
- What is legal reasoning and is it different from other forms of reasoning? If so, should it be? Why or why not? What does it mean to “think like a lawyer”? What are some of the merits of this form of thinking? What problems does it potentially create?

WEEK 2

ETHICS, PROFESSIONALISM AND THE MAKING OF LAWYERS CONT'D

Readings

- Duncan Kennedy, “The Responsibility of Lawyers for the Justice of their Causes” (1987) 18 Tex. Tech L. Rev. 1157, online:
< <https://duncankennedy.net/wp-content/uploads/2024/01/the-responsibility-of-lawyers-for-the-justice-of-their-causes.pdf>>
- Michael Cross, "Menon Contempt Action 'Novel and Without Historical Precedent', Says Chambers" *Law Gazette* (11 May 2026), online:
<www.lawgazette.co.uk/news/menon-contempt-action-novel-and-without-historical-precedent-says-chambers/5126726.article>.
- *In the matter of contempt proceedings against Rajiv Menon KC*, [2026] EWCA Civ 573. Online: <<https://www.judiciary.uk/wp-content/uploads/2026/06/Re-Rajiv-Menon-KC.pdf>>.
- Law Society of Ontario (LSO), *Rules of Professional Conduct* <<https://lso.ca/about-lso/legislation-rules/rules-of-professional-conduct/complete-rules-of-professional-conduct>>:
 - Rule 2.1-1 Integrity
 - Rule 3.1 Competence
 - Rule 3.2 Quality of Service
 - Rule 5.1 The Lawyer as Advocate
 - Rule 6.3.1 Discrimination

Questions

- What is a profession? What is a professional?
- What is meant by ethics and professionalism?
- Do ethics and professionalism change, depending on the cultural, racial, ethnic or religious identity of lawyers and clients?
- What purposes do professional codes of conduct fulfill?
- What is “neutral partisanship” and what are the ethical justifications and challenges that accompany it?

- Neutral partisanship presupposes a particular role for lawyers, but given that lawyers play many roles, can neutral partisanship be justified or sustained across all of these roles?
- Neutral partisanship assumes that it is only the positive law that defines the boundaries of what the lawyer ought to do for the client. Are there other considerations – personal ethics, common morality, justice, etc. – that might set additional boundaries? To what extent are these other considerations determined by culture or the lawyer’s identity or experiences?
- To what extent can and should a neutral partisan be held responsible for the content of their speech when engaging in zealous advocacy on behalf of a client? What are the limits of

WEEK 3

THE LEGAL PROFESSION: SELF-REGULATION

Readings

- *Law Society Act*, R.S.O. 1990, c. L.8, ss. 1(5)-(8), 2, 4.1-4.2, 26.1, 26.2(1)-(2), 27(2), 62(0.1)(4.1) and 62(0.1)(26), online: CanLII
<<http://www.canlii.org/en/on/laws/stat/rso-1990-c-l8/latest/rso-1990-c-l8.html>>.
- LSO, By-Law 4, “Licensing” at pt. II, s. 21 (“Oath”), online: LSO
<<https://lawsocietyontario.azureedge.net/media/lso/media/legacy/pdf/b/by-law-4.pdf>>. The text of the Oath is also posted on Moodle in Word format.
- LSO, *Rules of Professional Conduct*, online: LSO <<https://lso.ca/about-lso/legislation-rules/rules-of-professional-conduct/complete-rules-of-professional-conduct>>:
Rules 2.1 – [Integrity](#)
Rule 3.1 – [Competence](#)

Questions

- How is the legal profession governed regulated and why?
- What is self-regulation and what are its implications for the public interest?
- What is the significance of being a member of the legal profession?

- What is involved in taking an oath?
- Is the paradigm of “neutral partisanship” consistent with the statutory mandate of the profession granted to it pursuant to s. 4.2 of the *Law Society Act* and the lawyer’s oath?

WEEK 4

THE LEGAL PROFESSION: ADVANCING THE RULE OF LAW AND CAUSE OF JUSTICE

Readings

- Law Society of Upper Canada, *Final Report to Convocation*, Task Force on the Rule of Law and the Independence of the Bar (Toronto: 2006), pp. 1-12, posted on e-class.
- Truth and Reconciliation Commission of Canada, “Honouring the Truth, Reconciling the Future: Summary of the Final Report of the Truth and Reconciliation Commission of Canada,” pgs. 1-6, 16-21 (“Introduction”), online: Truth and Reconciliation Commission, http://www.trc.ca/assets/pdf/Honouring_the_Truth_Reconciling_for_the_Future_July_23_2015.pdf. The Truth and Reconciliation report is also available on YouTube through the *Read the TRC Report* project. Segments 1 and 3 correspond to the assigned reading:
 - Link to Segment 1:
<https://www.youtube.com/watch?v=vW4lQfOfI3I&index=1&list=PLxPr_Rlsvg9JJWoiRx2kl2v24r_pu7JbR>.
 - Link to Segment 3:
<https://www.youtube.com/watch?v=ROsqCxEe6kA&list=PLxPr_Rlsvg9JJWoiRx2kl2v24r_pu7JbR&index=3>.
- William P. Quigley, Letter to a Law Student Interested in Social Justice, 1 DePaul J. for Soc. Just. 7 (2007) Available at: <https://via.library.depaul.edu/jsj/vol1/iss1/4>

Questions

- What is the link between the regulation of the profession and the “rule of law”?
- How is the construction of legal professionalism implicated in the exclusion or marginalization of certain groups?

- What are the personal and institutional responsibilities of lawyers and the legal profession to promote truth and reconciliation with respect to indigenous peoples in Canada?
- What link, if any, is there between the regulation of the profession and “justice”?

WEEK 5

EQUALITY AND THE PUBLIC INTEREST

Readings

- Constance Backhouse, “Gender and Race in the Construction of ‘Legal Professionalism’: Historical Perspectives,” pp. 2-1 to 2-26 (“Barriers to Entry: Something Less than a Warm Welcome?”), paper presented at the Chief Justice of Ontario’s Advisory Committee on Professionalism, First Colloquium on the Legal Profession (October 2003), online: LSO
<https://lawsocietyontario.azureedge.net/media/lso/media/legacy/pdf/c/constance_backhouse_gender_and_race.pdf>.
- Faisal Bhabha, “Towards a Pedagogy of Diversity in Legal Education” (2014) 52 Osgoode Hall LJ, excerpts: pp. 66-80 (“Why Diversity?; Diversity as Equality; Representation; Inclusion), pp. 90-92 (“Diversity and Access to Justice”), online: <<https://digitalcommons.osgoode.yorku.ca/ohlj/vol52/iss1/2/>>
- Carol A. Aylward, Canadian Critical Race Theory: Racism and the Law (Fernwood, 1998) (excerpts: 174-189); online: <https://books-scholarsportal-info.ezproxy.library.yorku.ca/en/read?id=/ebooks/ebooks0/gibson_crkn/2010-12-16/1/10192244>

Questions

- What might be the implications of the profession’s historical social composition and norms of “gentlemanly civility” for the present-day profession?
- What is equality? What is diversity? What is inclusion? What implications do these concepts have for legal education and lawyering and for the legal profession? For the identification and resolution of lawyers’ ethical dilemmas?
- What is the public interest and what does it mean to claim that the legal profession exists in the public interest?

- What is the nature of the profession's obligation to the public interest? Is it discharged by advancing clients' interests? By performing a certain amount of *pro bono* work? By serving on volunteer boards? Or is it something else?

WEEK 6

EQUALITY AND THE PUBLIC INTEREST CONT'D

Readings

- Law Society of Upper Canada, "Working Together for Change: Strategies to Address Issues of Systemic Racism in the Legal Professions": *Final Report to Convocation*, The Challenges Faced by Racialized Licensees Working Group of the Equity and Aboriginal Issues Committee (Toronto: September 19, 2016) ("Executive Summary", pp 3-10), online: <<https://on.facl.ca/wp-content/uploads/2016/09/Convocation-September-2016-Equity-and-Aboriginal-Issues-Committee.pdf>>
- Joshua Sealy-Harrington, "Twelve Angry (White) Men: The Constitutionality of the Statement of Principles" (2020) 51:1 Ottawa L Rev 179. Online: <<https://www.canlii.org/en/commentary/doc/2020CanLII Docs583>>
- The Honourable J. Michael MacDonald, *Strengthening the Pillars, Report of the TMU External Review* (Toronto Metropolitan University: May 31, 2024), online: <<https://www.torontomu.ca/content/dam/report-release/TMU%20External%20Review%20Report%20dated%20May%2031,%202024.pdf>>

Questions

- How can and should legal education and the legal profession address issues of diversity/difference and exclusion/inequality among its members?
- How do freedom of expression and equality interrelate in the academic and professional contexts? Can speech breach equality, and how? Can equality breach freedom of expression, and how?
- How do the questions and materials in this section connect with other aspects of the first-year curriculum and other law school initiatives and activities?

WEEK 7
ACCESS TO JUSTICE

Readings

- Roderick A. MacDonald, “Access to Justice in Canada Today: Scope, Scale and Ambitions” in Julia Bass, W. A. Bogart and Frederick H. Zemans, eds., *Access to Justice for a New Century: The Way Forward* (Toronto: LSUC, 2005), pp. 19-31
- Trevor C.W. Farrow, “What is Access to Justice?” (2014) 51:3 Osgoode Hall L J 957, online: <<https://digitalcommons.osgoode.yorku.ca/ohlj/vol51/iss3/10/>>
- Truth and Reconciliation Commission of Canada, “Honouring the Truth, Reconciling the Future: Summary of the Final Report of the Truth and Reconciliation Commission of Canada,” pp. 164-182 (“Justice”), 209-219 (“Moving from Apology to Action”), 250-252 (“Canadian Museum of Human Rights”), and 300-306 (“Corporate Sector”), online: Truth and Reconciliation Commission <http://www.trc.ca/assets/pdf/Honouring_the_Truth_Reconciling_for_the_Future_July_23_2015.pdf>

Questions

- What is access to justice? Whose access? Whose justice?
- What role should the profession play in advancing access to justice?
- How, if at all, might considerations of access to justice shape the ethical choices a lawyer makes in the course of representing a client? What about the public interest?
- How might our thinking about access to justice be impacted by pluralism or globalization?

WEEK 8

TECHNOLOGY, GLOBALIZATION, AND THE FUTURE OF LAWYERS

Readings

- Benjamin Alarie, Anthony Niblett and Albert Yoon, “How Artificial Intelligence Will Affect the Practice of Law” (7 November 2017), online: SSRN <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3066816>.
- Jane Bailey, Jacquelyn Burkell & Graham Reynolds, “Access to Justice for *All*: Towards an ‘Expansive Vision’ of Justice and Technology” (2013) 31 Windsor Y B Access Just 181, online: <<https://wyaj.uwindsor.ca/index.php/wyaj/article/view/4419>>.
- Jane Ezirigwe, “Double Standards in International Law: Critical Reflections for an Academic Lens for Teaching and Research” (July 21, 2025) *Opinio Juris*, online: <<https://opiniojuris.org/2025/07/21/double-standards-in-international-law-critical-reflections-for-an-academic-lens-for-teaching-and-research/>>

Questions

- What does it mean for lawyers – individually and collectively – to have differing lawyering visions?
- What general implications might globalization and internationalization have for lawyering and for the legal profession?
- What are the short and long term implications of rapid technological development, particularly with respect to Artificial Intelligence, for lawyering and for the legal profession?
- What connections can you look for throughout the coming year between the ideas developed in this course (and indeed experiences you have had before law school) and the other courses in the first year of law school?

WEEK 9
PANEL DISCUSSION: LAWYERING TODAY

Panellists TBD

- - - End of Part I Course Outline - - -